

1.

CASE #	CASE NAME	HEARING NAME
CVME2504129	WELLS FARGO BANK VS OLIVAR	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT FOR COLLECTIONS OF WELLS FARGO BANK

Tentative Ruling:

Moving party: Plaintiff Wells Fargo Bank, N.A.

Responding party: Defendant Amanda Olivar

Motion filed: 2/24/2026

Opposition filed: 4/29/2026

Reply filed: 5/6/2026

The court's tentative ruling from May 19, 2026 is adopted.

Plaintiff's Motion for Summary Judgment is **GRANTED**. Court to sign the proposed order.

2.

CASE #	CASE NAME	HEARING NAME
CVME2600103	GRAVITAS GOLDENS VS LADEVEZE	MOTION TO VACATE COURT DATES BY GRAVITAS GOLDENS

Tentative Ruling: Motion GRANTED. All future court dates in Dept. M205 are vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVME2600216	BOTKIN VS TEANI	MOTION FOR LEAVE OF COURT TO FILE CROSS-COMPLAINT BY LUCAS TEANI, ASHLEY TEANI

Tentative Ruling: Motion GRANTS the request and Defendants to file their Cross-Complaint within 15 days of notice of this court's ruling.

4.

CASE #	CASE NAME	HEARING NAME
CVME2600705	MARLETTE SERVICING VS MATAMALA	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT FOR COLLECTIONS BY MATAMALA

Tentative Ruling:

Code of Civil Procedure section 418.10 authorizes a defendant to file a motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (C.C.P., § 418.10(a).) The motion must be filed "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow." (*Id.*) Personal jurisdiction over a defendant requires valid service of process. California Code of Civil Procedure section 410.10 provides that "[a] court of this state may exercise

jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.”

The fundamental defect in Defendant’s motion is that there is no service to quash. A motion to quash service of summons presupposes that service has been attempted and a proof of service, whether valid or defective, has been filed claiming that service was completed. Here, the only document on record is a Declaration of Non-Service explicitly stating that the process server was “unable to effect service.” Both parties agree that service has not been completed. Section 418.10 authorizes motions to “quash service of summons,” not to quash declarations of non-service or to obtain advisory rulings on whether future service attempts will be valid. Because no service has been completed or claimed, there is no jurisdictional act for the court to review and no justiciable controversy before the court. The court cannot quash that which does not exist. I recommend the Court deny the motion without prejudice.

Defendant’s Motion is **DENIED without prejudice**.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2208182	WELLS FARGO BANK VS ROMERO	MOTION TO VACATE DISMISSAL & ENTER JUDGMENT PURSUANT TO STIPULATION BY WELLS FARGO BANK

Tentative Ruling: Motion unopposed. Motion **GRANTED**. Court to sign the proposed order and the proposed judgment.